

AAES-OS BUILDER'S CHARTER

*A Foundational Covenant of Openness, Stewardship,
and Contributor Empowerment*

Document Title	AAES-OS Builder's Charter
Version	1.0
Effective Date	June 16, 2026
Governing Body	AAES-OS Core Governance Council
Classification	Public — Foundational Governance Instrument
Status	✓ Ratified
Supersedes	All prior governance drafts and pre-ratification working documents

TABLE OF CONTENTS

Preamble

Article I — Hierarchy of Governance Documents

Clause 1.1 — Supremacy

Clause 1.2 — Subordinate Instruments

Clause 1.3 — Amendment Authority

Article II — Principles of Openness

Clause 2.1 — Default Transparency

Clause 2.2 — Open Access to Knowledge

Clause 2.3 — No Proprietary Capture

Article III — Stewardship and Architectural Integrity

Clause 3.1 — The Stewardship Mandate

Clause 3.2 — Architectural Protection

Clause 3.3 — Long-Term Integrity Over Short-Term Convenience

Clause 3.4 — Succession and Continuity

Article IV — Non-Gatekeeping and Contributor Access

Clause 4.1 — Good-Faith Review

Clause 4.2 — Prohibition on Gatekeeping

Clause 4.3 — Escalation Rights

Clause 4.4 — Contribution Pathways

Article V — Contributor Empowerment

Clause 5.1 — Recognition and Attribution

Clause 5.2 — Voice in Governance

Clause 5.3 — Freedom to Fork

Clause 5.4 — Psychological Safety

Article VI — Governance Boundaries and Conflict of Interest

Clause 6.1 — Organizational Neutrality

Clause 6.2 — Conflict of Interest Disclosure

Clause 6.3 — Term Limits

Clause 6.4 — Public Accountability

Article VII — Relationship to the NDA and Contributor Agreement

Clause 7.1 — NDA Scope Limitation

Clause 7.2 — Contributor Agreement Alignment

Clause 7.3 — New Agreements

Article VIII — Enforcement and Remediation

Clause 8.1 — Reporting

Clause 8.2 — Investigation

Clause 8.3 — Remedies

Clause 8.4 — Appeals

Article IX — Charter Review and Evolution

Clause 9.1 — Periodic Review

Clause 9.2 — Community Participation

Clause 9.3 — Living Document

Signature and Ratification Block

PREAMBLE

AAES-OS is not a product. It is a project of collective stewardship — conceived to serve the long-term interests of those who build it, maintain it, and depend upon it. From its earliest days, the project has been founded on the conviction that open architecture, transparently governed and equitably maintained, represents a public good. This Builder's Charter is the formal expression of that conviction. It exists to ensure that the principles animating AAES-OS endure across generations of contributors, governance transitions, and technological change — that no single moment of expedience may erode what has been built through years of shared commitment.

This Charter stands as the supreme governance instrument of the AAES-OS project. All subordinate agreements — including, but not limited to, the AAES-OS Non-Disclosure Agreement and the AAES-OS Contributor Agreement — derive their authority from, and must remain in conformity with, the principles and provisions set forth herein. Where any subordinate document conflicts with this Charter, this Charter governs without exception. No organizational directive, partnership arrangement, or individual action may override the protections this Charter extends to contributors and to the integrity of the project itself.

The founding philosophy of AAES-OS rests on three pillars that are inseparable from its identity: first, that architecture is a public trust, not a private asset, and must be held accordingly; second, that contribution is an act of shared ownership, carrying both rights and responsibilities that no single party may unilaterally abrogate; and third, that no actor — individual or organizational, senior or new, affiliated or independent — may place themselves above the health of the system or the well-being of the community that sustains it. This Charter is the covenant that gives those pillars their permanence.

ARTICLE I — HIERARCHY OF GOVERNANCE DOCUMENTS

Clause 1.1 — *Supremacy.* This Charter supersedes all other AAES-OS governance instruments in matters of contributor rights, architectural governance, and access policy. Where a conflict exists between this Charter and any subordinate agreement — whether pre-existing or subsequently adopted — the Charter governs. No party bound by any AAES-OS governance document may invoke the terms of a subordinate agreement to limit, circumvent, or override the rights and protections established herein.

Clause 1.2 — *Subordinate Instruments.* The following documents operate beneath this Charter within the AAES-OS governance hierarchy:

1. the AAES-OS Non-Disclosure Agreement;
2. the AAES-OS Contributor Agreement;
3. any project-specific addenda, working group charters, or procedural guides adopted by the Core Governance Council.

Each of these instruments shall be interpreted and applied in a manner consistent with this Charter. Any provision found to be in irreconcilable conflict shall be deemed modified to the extent necessary to achieve conformity.

Clause 1.3 — *Amendment Authority.* This Charter may only be amended by a supermajority vote — defined as two-thirds of the total seated membership — of the Core Governance Council. Prior to any vote on a proposed amendment, a minimum 30-day public comment period must be made available to all Active Contributors, as defined in Clause 5.2. All proposed amendments, submitted comments, and the final Council vote record shall be published and retained in the project's public archive.

ARTICLE II — PRINCIPLES OF OPENNESS

Clause 2.1 — *Default Transparency.* All architectural decisions, roadmap discussions, and contribution reviews shall be conducted in open forums accessible to all Active Contributors. The default posture of AAES-OS governance is openness; closed deliberation is a narrow exception, not a general practice. Closed or restricted deliberation is permitted only in the following circumstances: (a) the triage of security vulnerabilities prior to coordinated public disclosure; (b) discussion of legally protected information shared under confidentiality obligations by external parties; or (c) personnel matters where individual privacy rights require restricted access. In all other cases, the presumption is in favor of open process.

Clause 2.2 — *Open Access to Knowledge.* No contributor, maintainer, or organizational participant may withhold documentation, specifications, design rationale, or technical knowledge that pertains to shared system components. The act of contribution to AAES-OS implies a commitment to knowledge transfer: that the understanding enabling a contribution is made accessible, to the greatest practical extent, to the contributor community at large. Repositories of architectural knowledge shall be maintained as living documentation, not as institutional memory held by individuals.

Clause 2.3 — *No Proprietary Capture.* No portion of the AAES-OS architecture may be enclosed, subjected to patent claims that restrict the project's use and development, or otherwise rendered inaccessible to the contributor base without the explicit ratification of this Charter's amendment process as defined in Clause 1.3. Any organizational or individual attempt to assert exclusive proprietary rights over AAES-OS components — whether through intellectual property mechanisms, technical lock-in, or access restriction — is contrary to this Charter and subject to enforcement under Article VIII.

ARTICLE III — STEWARDSHIP AND ARCHITECTURAL INTEGRITY

Clause 3.1 — *The Stewardship Mandate.* Core maintainers and architectural leads serve as stewards — not owners — of the AAES-OS system. Their authority is not inherent to their role; it derives from accountability to the contributor community and from the responsibilities they have accepted under this Charter. Stewardship is not conferred by tenure, organizational affiliation, or historical contribution alone. It is an active and ongoing obligation to the health, openness, and integrity of the system and the community it serves.

Clause 3.2 — *Architectural Protection.* Proposed changes to core system architecture — defined as modifications that alter fundamental component interfaces, data flows, security boundaries, or the project's open license status — must undergo a structured review process comprising all of the following stages:

4. a public proposal period of no fewer than 14 calendar days, during which the proposal is available for comment by all Active Contributors;
5. a documented impact assessment addressing downstream effects, compatibility implications, and security considerations;
6. formal ratification by the Architecture Review Board, constituted in accordance with the procedures established by the Core Governance Council.

No architectural change meeting this threshold may be merged, deployed, or implemented unilaterally by any individual contributor or maintainer, regardless of role or seniority.

Clause 3.3 — *Long-Term Integrity Over Short-Term Convenience.*

Stewards are both empowered and expected to reject contributions — regardless of their origin, the seniority of their author, or the organizational or timeline pressures attending them — when those contributions would compromise the long-term architectural coherence, security posture, or open character of the system. The health of AAES-OS across years and decades takes precedence over the convenience of any individual release cycle. Stewards who exercise this judgment in good faith shall not face retaliation, removal, or informal penalization for doing so.

Clause 3.4 — *Succession and Continuity.* All stewardship roles — including core maintainership, architectural lead positions, and critical path responsibilities — must have documented succession plans, reviewed and updated at minimum annually. No critical path of the AAES-OS system may be held solely by a single contributor with no identified transition path. The absence of a succession plan for a critical role constitutes a governance deficiency and must be remediated within 60 days of identification, under the oversight of the Core Governance Council.

ARTICLE IV — NON-GATEKEEPING AND CONTRIBUTOR ACCESS

Clause 4.1 — *Good-Faith Review.* All contributions submitted in good faith and in accordance with the AAES-OS Contributor Agreement are entitled to timely, substantive, and good-faith review. Contributions shall not be ignored, indefinitely delayed without communication, or silently rejected. Where a contribution is declined, the reviewing maintainer must provide a documented rationale sufficient to allow the contributor to understand the basis for the decision and, where applicable, to revise and resubmit their work.

Clause 4.2 — *Prohibition on Gatekeeping.* No maintainer, architectural lead, governance member, or organizational participant may use their position within AAES-OS to suppress, delay, systematically disadvantage, or otherwise obstruct contributions from individuals or groups on the basis of: affiliation or non-affiliation with a particular organization; employment status; geography or time zone; prior disagreement or interpersonal conflict; or any other non-technical, non-merit-based consideration. The review of contributions must be governed by technical merit, architectural alignment, and the principles of this Charter — not by the identity or relationships of the contributor.

Clause 4.3 — *Escalation Rights.* Any contributor who reasonably believes that a gatekeeping violation as described in Clause 4.2 has occurred may submit a formal escalation to the Core Governance Council within 30 calendar days of the event giving rise to the claim. A properly filed escalation must include a description of the relevant events, the contribution or contributions at issue, and the basis for the claim. Upon receipt of a properly filed escalation, the Council must issue a formal, written response within 14 calendar days. The Council's response must address the substance of the claim and specify any remedial action taken or planned.

Clause 4.4 — *Contribution Pathways.* The project shall maintain, at all times, at minimum one clearly and publicly documented pathway through which new contributors may make meaningful contributions to AAES-OS without requiring pre-existing relationships with existing maintainers, organizational membership, or any form of sponsorship. This pathway shall be documented in the project's public-facing contributor resources and reviewed for accessibility no less than annually by the Core Governance Council.

ARTICLE V — CONTRIBUTOR EMPOWERMENT

Clause 5.1 — *Recognition and Attribution.* All contributors retain the permanent and inalienable right to attribution for their work within AAES-OS project records. Attribution, once established in the project's records, may not be stripped, reassigned, transferred, or obscured without the explicit written consent of the contributor to whom it belongs. This right persists regardless of any subsequent changes to the contributor's affiliation, employment, or active participation status. Project records documenting contribution history shall be maintained as part of the project archive and treated as authoritative.

Clause 5.2 — *Voice in Governance.* Contributors who have made substantive contributions to AAES-OS within the preceding 12 calendar months are recognized as Active Contributors and hold voice rights in all public governance forums. Active Contributors may: propose formal amendments to this Charter or subordinate governance documents; raise formal objections to pending architectural or governance decisions; and request initiation of an Architecture Review in accordance with the procedures established under Clause 3.2. The Core Governance Council shall maintain and publish a current roster of Active Contributors, updated no less than quarterly.

Clause 5.3 — *Freedom to Fork.* In the event that this Charter is violated at a systemic level and good-faith remediation efforts — including escalation under Clause 4.3 and enforcement procedures under Article VIII — have failed to produce adequate resolution, contributors retain the irrevocable right to fork the AAES-OS project in accordance with its open license terms. This right is a fundamental and non-negotiable protection of the contributor community. It cannot be contracted away, waived, or restricted by any subordinate agreement, addendum, or governance action. The existence of

this right is itself a governance safeguard, ensuring that the community retains ultimate recourse.

Clause 5.4 — *Psychological Safety*. The AAES-OS project commits to maintaining an environment in which all contributors may raise dissent, flag concerns, challenge decisions, and propose alternatives without fear of retaliation, informal exclusion, or penalization of any kind. The value of a contributor's technical judgment must not be assessed through the lens of how often they agree with incumbents. Dissent expressed in good faith is a contribution to the project, not a threat to it. Governance and stewardship bodies are responsible for modeling and protecting this culture within their respective spheres of authority.

ARTICLE VI — GOVERNANCE BOUNDARIES AND CONFLICT OF INTEREST

Clause 6.1 — *Organizational Neutrality*. No single organization — corporate, non-profit, governmental, or otherwise — may hold a majority of seats on the Core Governance Council or the Architecture Review Board simultaneously. Council and Board membership is held by individuals in their personal capacity; organizational affiliation is a disclosed attribute, not the basis of membership authority. Where a change in affiliation among sitting members would result in a single organization holding a majority of seats, the Council must initiate a remedial appointment or election process within 60 days to restore compliance with this clause.

Clause 6.2 — *Conflict of Interest Disclosure*. Any member of the Core Governance Council or the Architecture Review Board who holds a direct financial, organizational, or personal interest in the outcome of a pending decision must, prior to any deliberation on that matter: (a) disclose the nature

and extent of the interest to the full Council or Board; and (b) recuse themselves from all deliberation and voting on the matter. Disclosures made pursuant to this clause shall be recorded in the meeting minutes and published in the project archive in accordance with Clause 6.4.

Clause 6.3 — *Term Limits*. All appointed governance roles within AAES-OS — including Core Governance Council seats and Architecture Review Board seats — carry a term limit of two years. A single renewal, by contributor vote, is permitted, for a maximum of four consecutive years in the same seat. Upon reaching this limit, a minimum of one full term must elapse before the individual is eligible for reappointment to the same role. This provision applies to all roles regardless of how long the individual has served prior to the effective date of this Charter, with grandfathering periods to be determined by the Council within 90 days of ratification.

Clause 6.4 — *Public Accountability*. Governance meeting minutes, voting records, and conflict-of-interest disclosures shall be published within 7 calendar days of each meeting and maintained indefinitely in a publicly accessible project archive. Meeting minutes shall include, at minimum: a record of attendance; a summary of items discussed; a record of all formal votes, including individual vote tallies; and a notation of any recusals and their stated basis. The project archive shall not require authentication to read and shall be indexed for search.

ARTICLE VII — RELATIONSHIP TO THE NDA AND CONTRIBUTOR AGREEMENT

Clause 7.1 — *NDA Scope Limitation*. The AAES-OS Non-Disclosure Agreement governs a narrow and explicitly bounded category of information: pre-publication security vulnerability disclosures made pursuant to

coordinated disclosure procedures; proprietary data pertaining to third-party integrations where a confidentiality obligation exists with the third party; and commercially sensitive organizational data shared by external partners in the context of a formal partnership arrangement. The NDA shall not be interpreted, applied, or enforced to restrict any contributor's right to discuss architectural patterns, their own contributions and the rationale behind them, governance processes, or any information that is not clearly within its defined scope. Any application of the NDA beyond its defined scope is contrary to this Charter.

Clause 7.2 — *Contributor Agreement Alignment.* The AAES-OS Contributor Agreement operationalizes the contribution workflow described by this Charter. It governs the mechanics of contribution — licensing, submission process, intellectual property assignment or licensing terms — and must at all times be consistent with the principles of Articles II through V of this Charter. Any clause within the Contributor Agreement that conflicts with Articles II through V is subordinate to this Charter and shall be interpreted in the Charter's favor. The Contributor Agreement may be updated by the Core Governance Council, subject to the review requirement established in Clause 7.3.

Clause 7.3 — *New Agreements.* Any new governance document, agreement, or policy instrument proposed for adoption by or in relation to the AAES-OS project must undergo a formal review against this Charter prior to adoption. This review shall be conducted by the Core Governance Council or a designated review panel, and must result in a written finding that the proposed document is consistent with this Charter. No new governance instrument may take effect if found to be in conflict with this Charter unless a Charter amendment resolving the conflict has first been ratified in accordance with Clause 1.3.

ARTICLE VIII — ENFORCEMENT AND REMEDIATION

Important Notice

The enforcement procedures set forth in this Article are designed to be proportionate, transparent, and protective of due process rights for all parties. They are not punitive in primary purpose; their goal is the restoration of Charter compliance and the protection of the contributor community.

Clause 8.1 — *Reporting.* Alleged violations of this Charter may be reported to the Core Governance Council via a documented, confidential reporting channel maintained specifically for that purpose. The existence, location, and operation of this channel shall be publicly documented and easily accessible to all contributors. The Council shall acknowledge receipt of all formal reports within 5 calendar days. The confidentiality of the reporting party shall be protected to the extent consistent with a fair investigation.

Clause 8.2 — *Investigation.* Upon receipt of a formally filed Charter violation claim, the Core Governance Council shall appoint an independent review panel of no fewer than three Active Contributors to conduct an investigation of the matter. The review panel may not include: the individual or individuals accused of the violation; any Council or Board member in a direct reporting or supervisory relationship with the accused party; or any individual with a disclosed conflict of interest in the matter as defined under Clause 6.2. The review panel shall complete its investigation and issue a written findings report within 45 calendar days of appointment, subject to reasonable extension for cause.

Clause 8.3 — *Remedies.* Where a review panel finds, by a preponderance of the evidence, that a Charter violation has occurred, the Core Governance

Council may impose one or more of the following remedies, scaled proportionately to the nature and severity of the violation:

7. **Formal Warning** — a written notice of violation entered into the project record;
8. **Temporary Suspension of Governance Privileges** — a time-limited suspension of voting rights, review authority, or other governance functions;
9. **Removal from Stewardship or Governance Roles** — permanent or extended removal from a named role within the project;
10. **Public Disclosure of Findings** — publication of the review panel's findings in the project archive, in cases where the violation's impact on the contributor community warrants transparency.

The Core Governance Council shall document its remedy selection and the basis for any proportionality determination in the project's public record.

Clause 8.4 — Appeals. Any party subject to a governance action under this Article may submit a written appeal to the full Core Governance Council within 14 calendar days of receiving written notification of the action. The appeal must specify the basis on which the original finding or remedy is contested. The Council shall consider the appeal at its next regularly scheduled or specially convened meeting. Reversal of a governance action on appeal requires a two-thirds supermajority of the total seated Council membership. The outcome of the appeal process is final within the AAES-OS governance structure and shall be documented in the project archive.

ARTICLE IX — CHARTER REVIEW AND EVOLUTION

Clause 9.1 — *Periodic Review.* This Charter shall undergo a formal, structured review no less than once every two years from its effective date. Each review cycle shall be formally initiated by the Core Governance Council and shall include: public announcement of the review period to all Active Contributors; a designated comment and proposal submission window of no fewer than 30 days; and a Council session dedicated to the consideration of submitted proposals. A summary of the review process, including all proposals received and the Council's disposition of each, shall be published in the project archive within 30 days of the review session's conclusion.

Clause 9.2 — *Community Participation.* Any Active Contributor, as defined in Clause 5.2, may submit proposed amendments to this Charter for consideration during any formal review period or, outside of formal review periods, as a petition to the Core Governance Council. All proposals submitted through proper channels shall be documented in the project record and shall receive a written response from the Council — whether adopted, modified, deferred, or declined — along with a reasoned rationale. The Council may not decline to respond to a properly submitted proposal.

Clause 9.3 — *Living Document.* This Charter is intended to grow and adapt alongside the AAES-OS project. Its procedural mechanics — the specific timelines, quorum requirements, and process structures set forth herein — may be modified as the project matures and as the contributor community's needs evolve, subject always to the amendment process established in Clause 1.3. Its core principles, however, are inviolable: openness as the default posture of the project; stewardship as an obligation of accountability rather than a claim of ownership; non-gatekeeping as an affirmative commitment to equitable access; and contributor empowerment as the foundation upon which the system's long-term health depends. These principles are not procedural mechanics. They are the identity of AAES-OS.

SIGNATURE AND RATIFICATION

This Charter has been reviewed, deliberated upon, and ratified by the AAES-OS Core Governance Council in open session. By affixing their signatures below, the undersigned affirm that this Charter represents the foundational governance covenant of the AAES-OS project and commit to upholding its principles in the exercise of their respective roles.

Ratified by the AAES-OS Core Governance Council

Effective Date: June 16, 2026

Council Chair AAES-OS
Core Governance Council
Date: _____

Architectural Lead
AAES-OS Architecture Review
Board Date: _____

**Community
Representative** Active
Contributor Community Date:

"This Charter is a covenant — not a contract. It binds the project to its contributors as much as it binds contributors to the project."

AAES-OS Builder's Charter — Version 1.0 — Ratified June 16, 2026
Maintained by the AAES-OS Core Governance Council — Published in the
Public Project Archive